

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLAN KONCE,

Petitioner

VS.

GABIA PAKSTYS KONCE,

Respondent

) Case Number: FDI-25-801047

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, BIFURCATE AND ENTER
STATUS JUDGMENT AND ALLOW EXTENDED DEPOSITION FOR LA PROPERTY MANAGER
ADEL RAPHAEL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Allan Konce (Husband) and Respondent Gabia Konce (Wife). The parties married on 7/30/2010. Husband stated “TBD” for the date of separation in his Petition filed 3/4/2025, although elsewhere in his pleadings he states that the duration of marriage was 13 years. Wife never filed a Response to Husband’s Petition for Dissolution (which was personally served on Wife on 3/8/2025). Husband is represented by attorney Nancy Lofdahl.
- 2) On 5/27/2026, Husband filed an ex parte Request for Order asking the Court to bifurcate and terminate the parties’ marital status and “allow extended deposition for LA property manager Adel Raphael” which Husband states “may go as long as 35 hours total.”
- 3) The Temporary Emergency (Ex Parte) Orders filed 5/27/2026 included a finding that “the Request has been served,” set Husband’s request to bifurcate and terminate marital status for hearing on 7/30/2026, and granted Husband’s request to depose Adel Raphael, albeit for a total of

1 16 hours with the possibility for a long period at a later time for good cause shown. The Court
2 also ordered Wife to file a response on or before 7/17/2026.

- 3 4) On 7/1/2026, Husband filed another ex parte Request for Order asking the Court to terminate
4 marital status immediately. Husband states he is a licensed medical doctor with insight into his
5 own health issues and he is “gravely concerned” that he may not survive until 7/30/2026.
- 6 5) On 7/1/2026, the Court issued Temporary Emergency (Ex Parte) Orders advancing the 7/30/2026
7 hearing to 7/14/2026. The Court ordered Husband to file and serve a declaration providing good
8 cause why the Court should not apply the protections set forth in Family Code section 2337(c)(1)-
9 (6). The Court ordered Wife to file and serve any response by email and mail by 7/10/2026.
- 10 6) The Court also required that service of Husband’s 7/1/2026 Request for Order be served by email
11 to washingtonproposalassociates.com (the email address the Court has on file for Wife) and by
12 overnight mail to 2526 El Camino Real #208 Redwood City, CA 94061 on or before 7/2/2026.
- 13 7) On 7/7/2026, Husband filed a Supplemental Declaration wherein he agrees to be bound by the
14 protections set forth in Family Code section 2337(c)(1), but he does not agree to be bound by any
15 other protection set forth in Family Code section 2337 because neither party has any pension,
16 retirement, or tax deferred accounts; Husband has been on Medicare for 20 years and Wife is not
17 on any health insurance plan through him; and he is not aware of any existing rights related to
18 probate homestead, probate family allowance, retirement survivor benefits, beneficiary-
19 designation rights, or other nonprobate transfer rights that would be adversely affected by entry of
20 a status-only judgment.
- 21 8) On 7/7/2026, Husband’s attorney Nancy Lofdahl filed a declaration. Ms. Lofdahl states that on
22 7/6/2026 she emailed the following documents to Wife’s address of record
23 (washingtonproposalassociates@gmail.com) as well as another email address Wife has used in the
24 past (gabiakonce@gmail.com): FL-305 (Temporary Emergency (Ex Parte) Orders) filed
25 7/1/2026; FL-300 (Request for Order) filed 7/1/2026; FL-300 (Request for Order) filed
26 5/27/2026; FL-305 (Temporary Emergency (Ex Parte) Orders) filed 5/27/2026; SF Court
27 Tentative Ruling Instructions; SF Court Remote Appearance Instructions; blank FL-320
28 (Responsive Declaration); and Supplemental Declaration Re Family Code 2337 In Support of
29 Request for Bifurcation and Entry of Status Judgment. Ms. Lofdahl also states that on 7/6/2026,

1 she personally delivered the papers to 2526 El Camino Real #208, Redwood City, CA 94061
2 (which is a Budget Inn Motel). Ms. Lofdahl states Husband has been paying for Wife to stay at
3 that motel after the real property in Atherton was sold. Ms. Lofdahl states the woman at the front
4 desk advised that Wife was not there and she placed the documents “with other documents for
5 Respondent to pick up.”

6 9) On 7/10/2026, Wife filed a motion for continuance. Wife states she did not receive service of
7 Husband’s May 2026 request to bifurcate and terminate marital status until 7/6/2026 when
8 Husband’s attorney emailed her the documents. Wife also states that she has retained Direct
9 Legal to obtain the complete case file. Wife requests a continuance so she can be “properly given
10 the opportunity to review served files in their entirety and respond to the Court.”

11 10) On 7/10/2026, Wife filed a Declaration in Opposition to Husband’s Request. Wife states that she
12 opposes the information provided in Husband’s Supplemental Declaration filed (7/7/2026) and
13 states she is entitled to protections under Family Code section 2337(c)(1-16) (the Court assumes
14 this is a typographical errors as Family Code section 2337(c) does not contain 16 subsections).
15 Wife states Husband’s health “remains good based on credible sources at his place of
16 employment.” Wife reiterates her request to continue the hearing on Husband’s request to August
17 2026 so that she can “provide the Court a detailed response.”

18 11) Per the Proof of Electronic Service filed 7/10/2026, Wife emailed her pleading to Husband’s
19 attorney on 7/10/2026.

20 **B. Findings and Order**

- 21 1) Wife’s motion for a continuance is denied.
- 22 2) The Court hereby grants Husband’s request to bifurcate and terminate marital status. The parties’
23 marital status is dissolved and the parties are returned to their single status effective 7/14/2026.
- 24 3) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
25 the protections of Family Code section 2337(c)(1) and (3)-(6) shall apply against Husband until
26 judgment is entered on all remaining issues.
- 27 4) The parties are reminded that despite the termination of their marital status, the Standard Family
28 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
29 Code section 233(a).

1 5) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
2 under Family Code section 2337(f).

3 6) The Court will prepare the Findings and Order After Hearing as well as a Judgment terminating
4 marital status.

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BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 7/14/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Type of order attached

3a(1) 3a(2) 3a(3)

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☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

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5. b. ☐ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☐ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☐ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached:

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.